



LAZY DOG

— CAPITAL —

BILL OF SALE AND ASSIGNMENT

OF PERSONAL PROPERTY, CONTRACTS, PERMITS, PLANS AND WARRANTIES

DRAFT — NOT FOR USE. Must be reviewed and approved by a licensed Texas real estate attorney before use. Executed concurrently with the Special Warranty Deed in Lieu of Foreclosure. Not recorded.

Date: {{SETTLEMENT_DATE}}

Assignor: {{BORROWER_ENTITY}}, a {{BORROWER_ENTITY_TYPE}},
{{BORROWER_ADDRESS}}

Assignee: LAZY DOG CAPITAL LLC, a Texas limited liability company, 3400 N Central
Expy #110-217, Richardson, Texas 75080

Property: The real property described on **Exhibit A**, commonly known as
{{PROPERTY_ADDRESS}}, {{COUNTY}} County, Texas.

RECITALS

Concurrently with this instrument, Assignor is conveying the Property to Assignee by Special Warranty Deed in Lieu of Foreclosure. Assignor is transferring to Assignee all personal property and intangible rights relating to the Property so that Assignee may complete, market, and sell the improvements.

1. TRANSFER OF PERSONAL PROPERTY

For the consideration described in the Settlement and Release Agreement between the parties of even date, and other good and valuable consideration, Assignor **SELLS, TRANSFERS, ASSIGNS, AND CONVEYS** to Assignee, **AS-IS, WHERE-IS**, all of Assignor's right, title, and interest in and to the following, to the extent located at or relating to the Property:

1.1 Materials and supplies. All building materials, lumber, fixtures, appliances, cabinetry, flooring, tile, millwork, hardware, plumbing and electrical fixtures, HVAC equipment, windows, doors, roofing materials, paint, and other construction materials and supplies, whether installed, stored on site, staged, or paid for and awaiting delivery.

1.2 Equipment. All tools, scaffolding, temporary fencing, portable toilets, dumpsters, storage containers, generators, and other equipment located at the Property and owned by Assignor.

1.3 Deposits and prepayments. All deposits, retainers, prepayments, and credits paid by Assignor to any contractor, supplier, vendor, utility, or municipality relating to the Property, including utility deposits and permit deposits.

1.4 Other personal property. All other tangible personal property owned by Assignor and located at the Property.

2. ASSIGNMENT OF CONTRACTS AND INTANGIBLES

Assignor **ASSIGNS AND TRANSFERS** to Assignee all of Assignor's right, title, and interest in and to the following, to the extent assignable:

2.1 Construction contracts. All contracts, subcontracts, purchase orders, and work agreements with any general contractor, subcontractor, tradesman, or supplier relating to work at the Property, listed on **Schedule A**.

2.2 Plans and specifications. All architectural, engineering, structural, mechanical, electrical, and plumbing plans, drawings, specifications, surveys, soil reports, inspection reports, and construction documents relating to the Property, in whatever form.

2.3 Permits and approvals. All building permits, demolition permits, electrical, plumbing and mechanical permits, certificates of occupancy, zoning approvals, variances, utility approvals, and other governmental permits, licenses, and approvals relating to the Property, listed on **Schedule B**, together with all applications pending.

2.4 Warranties and guaranties. All manufacturer, supplier, contractor, and installer warranties and guaranties relating to any labor performed or material installed at the Property, listed on **Schedule C**.

2.5 Claims. All claims, causes of action, and rights of recovery Assignor holds against any contractor, subcontractor, supplier, insurer, or other party relating to work performed or materials furnished at the Property, or to damage to the Property.

2.6 Insurance. All rights under any builder's risk, property, or liability insurance policy covering the Property, including any unpaid claim and any unearned premium refund.

2.7 Utilities. All utility accounts, service agreements, and deposits relating to the Property.

3. DELIVERY

On or before {{POSSESSION_DATE}}, Assignor shall deliver to Assignee:

- ☐ All keys, garage remotes, gate cards, access codes, lockbox codes, and alarm codes
- ☐ Originals or complete copies of all plans, specifications, and permits
- ☐ All contracts, subcontracts, and purchase orders
- ☐ All warranty documentation
- ☐ All inspection reports, surveys, and engineering reports
- ☐ Contact information for every contractor, subcontractor, and supplier who worked on the Property
- ☐ A complete accounting of all amounts paid and owed to each such party

4. ASSIGNOR'S REPRESENTATIONS

4.1 Assignor owns the personal property transferred in Section 1 free and clear of all liens, security interests, and claims, except as disclosed on Schedule 1 of the Estoppel Affidavit of even date.

4.2 Assignor has full right and authority to make this transfer and assignment.

4.3 Schedules A, B, and C are complete and accurate to Assignor's knowledge. Assignor has not omitted any contract, permit, or warranty relating to the Property.

4.4 Assignor has not previously assigned, pledged, or encumbered any item transferred here.

4.5 No material or equipment located at the Property is leased, rented, subject to a purchase-money security interest, or subject to a consignment, except as disclosed on Schedule A.

4.6 Assignor has not removed and will not remove any fixture, appliance, material, or improvement from the Property.

5. NO ASSUMPTION OF LIABILITIES

5.1 Assignee does not assume, and shall not be liable for, any obligation, debt, liability, or claim of Assignor, including any amount owed to any contractor, subcontractor, laborer, materialman, supplier, or utility, whether arising before or after the date of this instrument.

5.2 Assignee's acceptance of an assigned contract does not constitute assumption of any accrued obligation under that contract, and Assignee may elect not to accept, continue, or perform under any assigned contract.

5.3 Assignor shall indemnify and hold Assignee harmless from any claim arising from Assignor's obligations under any assigned contract, or from any breach of a representation in Section 4.

6. AS-IS

EXCEPT FOR THE REPRESENTATIONS IN SECTION 4, THE PERSONAL PROPERTY AND RIGHTS TRANSFERRED HERE ARE CONVEYED AS-IS, WHERE-IS, WITH ALL FAULTS, WITHOUT ANY WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, CONDITION, OR QUALITY, EXPRESS OR IMPLIED.

7. FURTHER ASSURANCES

Assignor shall execute any additional document and take any additional action reasonably requested by Assignee to effect this transfer and assignment, including consents, permit transfer applications, and notices to contractors, suppliers, insurers, and utilities.

8. GENERAL

8.1 Texas law governs. Venue lies in {{COUNTY}} County, Texas.

8.2 This instrument binds and benefits the parties and their successors and assigns.

8.3 May be executed in counterparts; electronic signatures have the same effect as originals.

8.4 Section 4 and Section 5.3 survive delivery.

EXECUTION

ASSIGNOR:

{{BORROWER_ENTITY}},

a {{BORROWER_ENTITY_TYPE}}

By: _____ Date: _____

Name: {{AFFIANT_NAME}}

Title: {{AFFIANT_TITLE}}

ASSIGNEE:

LAZY DOG CAPITAL LLC

By: _____ Date: _____

Name: Lewis McKnight, Manager

By: _____ Date: _____

Name: Stephen Maner, Manager

SCHEDULE A — Contracts, Subcontracts and Purchase Orders

List all. Write "NONE" if none.

PARTY	SCOPE OF WORK / MATERIALS	CONTRACT AMOUNT	PAID TO DATE	BALANCE OWED

Note any leased, rented, or consigned equipment or materials here: _____

SCHEDULE B — Permits and Approvals

PERMIT TYPE	ISSUING AUTHORITY	PERMIT NO.	ISSUE DATE	STATUS

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Note any open inspection, stop-work order, red tag, or code enforcement matter:

SCHEDULE C — Warranties and Guaranties

ITEM	PROVIDER	TERM	DOCUMENTATION ATTACHED?

Exhibit A — Legal Description

Lazy Dog Capital LLC · 3400 N Central Expy #110-217, Richardson, TX 75080 · 214-740-4989

TOKENS

{{SETTLEMENT_DATE}} · {{BORROWER_ENTITY}} · {{BORROWER_ENTITY_TYPE}} ·
 {{BORROWER_ADDRESS}} · {{PROPERTY_ADDRESS}} · {{COUNTY}} · {{POSSESSION_DATE}} ·
 {{AFFIANT_NAME}} · {{AFFIANT_TITLE}}